On the Protection of Workers' Rights in the Digitized Workplace

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" SURVEILLANCE TODAY IS NO LONGER A SUPPLEMENT TO MANAGEMENT; IT IS MANAGEMENT. "

Abstract

This paper examines how emergent forms of digital surveillance and algorithmic management are reshaping labor relations and undermining core protections under the National Labor Relations Act (NLRA). While often framed as neutral tools of efficiency, cybernated management systems are increasingly used to suppress union activity, obscure decision-making processes, and entrench managerial power. Drawing on legal scholarship, case law, and recent memoranda from the National Labor Relations Board (NLRB), including the now-rescinded GC 23-02, the paper outlines the risks posed by artificial intelligence, pre-employment screening tools, and continuous workplace monitoring. It traces the historical lineage of scientific management and surveillance back to earlier forms of labor discipline, such as racialized coercion and Pinkerton union-busting, arguing that contemporary tools reproduce similar hierarchies with greater opacity. The analysis highlights how current NLRB standards—developed in a pre-digital era—fail to adequately address the psychological, legal, and structural implications of 21st-century surveillance practices. Special attention is paid to how the political composition of the NLRB shapes the enforcement of labor law, with the rescission of dozens of pro-worker memos under the second Trump administration illustrating the fragility of regulatory protections. Ultimately, the paper calls for a more aggressive and strategic response by unions, legal advocates, and the Board itself to confront the inchoate crisis of digital labor control. Without such intervention, algorithmic management will continue to erode worker autonomy, collective action, and the possibility of democratic oversight in the workplace.

Introduction

In their quest to ruthlessly extract as much as possible from their workers, employers have begun to utilize cybernated tools that are quite literally inhuman in both formation and application. Without expanded protections, the impending transition to hyper-digital workplaces will lead to the widespread erosion of employees' rights. While these tools are often framed as neutral instruments of efficiency, they are frequently deployed to consolidate managerial power, suppress organizing efforts, and obscure the mechanisms by which employment decisions are made. Drawing on existing National Labor Relations Board precedent, legal scholarship, and recent developments in labor policy, the following analysis considers how digital management practices intersect with foundational rights under the National Labor Relations Act and identifies where current protections fall short. Though the technologies may be new, the patterns of power they reproduce are deeply familiar. Boldness, innovation, and disruption cannot be principles reserved solely for techno-oligarchs and their ilk; organizers and the NLRB must create and implement responsive strategies to counter this inchoate crisis.

Jennifer A. Abruzzo, who served as General Counsel to the National Labor Relations Board from 2021 until being ousted in early 2025, was well aware of this exigency. On October 31, 2022, she released a memorandum outlining a swath of issues surfaced or augmented by employers' use of "omnipresent surveillance and other algorithmic-management tools". [1] Abruzzo proposed a number of solutions, all of which were girded by a desire to utilize "well-settled Board principles" to mount a robust and proactive defense of workers' rights. [2] However, the memo was among more than thirty rescinded almost immediately by William Cowen, who President Trump appointed Acting General Counsel of the National Labor Relations Board on February 3, 2025, signaling a sharp shift in the Board's priorities and leaving a vacuum in guidance on these urgent issues. [3]

Screening Out Dissent: Pre-Employment Tools and Anti-Union Animus

As a class, employers demonstrate few qualms about using patently illegal means to squash unionization efforts. Amongst the most common of these unfair labor practices is the illegal discharge of workers for leading or participating in union drives. [4] While Section 8(a)(3) of the National Labor Relations Act states that it is unlawful for an employer "by discrimination in regard to hire or tenure of employment or any terms or condition of employment to encourage or discourage membership in any labor organization", the consequences for doing so are greatly outweighed by the benefits reaped by the company–a reality the PRO Act attempts to address, though it has repeatedly failed to advance to the Senate. [5] The Economic Policy Institute found that in nearly 30% of "NLRB-supervised elections" employers are charged with unlawfully discharging workers. [6] However, a more adroit way to hinder the formation of a union is to make sure that candidates who are likely to "agitate" for better working conditions or the formation of a union do not make it past the interview process. [7]

This is most frequently achieved through the administration of personality tests that prize applicants who demonstrate complacency about their working conditions and a high likelihood to tacitly accept injustice in their workplace. The earliest ancestors of the modern personality test were repurposed screeners for mental illness, leveraged in an attempt to replace the "Yellow Dog Contracts" rendered illegal by the Wagner Act. [8] Over the following decades, these tests were refined into bespoke screeners that could winnow out likely union activists. That there is "little correlation between job performance and such personality tests" indicates that employers' insistence on administering them–over two-thirds of job seekers are estimated to take personality tests each year–is likely driven by a desire not for the best workers but the most complacent ones. [9]

Employers are tenacious and inventive in their pursuit of methods to ascertain whether candidates have union sympathies, and personality tests are now just one method in a battery of tools designed for this purpose. In their article, The Invisible Web at Work, Law professors Richard Bales and Katherine Stone demonstrate that companies are turning to a suite of artificial intelligence-powered tools to sort and analyze the deluge of employee data they have access to. As previously established, union aversion is one of the implicit standards for determining which candidates are good employees. AI is notorious for being marred by and replicating, or worse yet "amplify[ing]" human biases. [10] As former General Counsel Abruzzo noted in her now-rescinded memo, there is ample precedent indicating that "[e]mployers...violate Section 8(a)(1) if they coercively question employees with personality tests designed to evaluate their propensity to seek union representation." [11] Though her departure and the rescission of this and many related memos have curtailed the official stance of the General Counsel's office on such practices, the underlying precedents remain available for strategic use by unions and advocates. Expert opinion indicates that these algorithmic tests and screeners likely illegally assert anti-union animus through their internal mechanisms; however, these mechanisms would need to be further unveiled to definitively identify clear violations of the NLRA. [12] As will be expounded on later, unions may be best suited to take up this gauntlet given the existent case law regarding the application of Section 8(a)(5) and 8(d) of the Act.

Companies also utilize "algorithmic correlations" found within data culled from internal polls to sniff out the presence of "union sympathies" amongst their employees. [13] While the connection between the use of these internal polls and anti-union discrimination will remain tenuous until information from the aforementioned efforts to better elucidate their inner workings is discovered, there is established precedent that may be useful in finding the practice illegal should their intent to ascertain union sympathies be concretized. One such example is the supplemental decision issued in 1967 for Struksnes Construction Co., Inc,. [14] In this decision, the Board elucidates its stance on polling's role in chilling Section 7 activity, having seen "innumerable cases in which" it was "the prelude to discrimination" and noting that "any attempt by an employer to ascertain employee views and sympathies regarding Unionism...tends to impinge on...Section 7 rights."[15] The Board also clarifies that "Section 8(c)" cannot be construed as "protect[ing] an employer's efforts to discern, through polling or coercive interrogation, the union sentiments of employees." [16] As Nathan Newman notes in his masterful article for the University of Cincinnati Law Review "[t]he Board and the courts have made clear that "polls that even indirectly elicit information on union sympathies are illegal." [17] [18] [19]

Collective Bargaining as a Bulwark Against Surveillance

Much of the focus here has been on the great mass of workers who face their bosses as atomized entities, that is the 93% of private sector employees without union affiliation. [20] However, it is crucial to note that collective bargaining offers some of the strongest protection against the encroachments of electronic surveillance. In Golden Stevedoring Co. even when the Board finds that an employer "did not tighten the application of disciplinary rules or expand their scope" changing the means by which "disciplinary messages" are disseminated is found to "constitute a significant change in a condition of employment which is a mandatory subject of collective-bargaining." [21] The Board's recognition of the "psychological impact of placing words on paper" on workers derived from the "aura of permanence" that recorded communication holds is particularly useful for developing protective frameworks around electronic management, given the cultural perception that digitally recorded information is perdurable. [22] Similarly beneficial is the Board's finding that the "installation of surveillance cameras is analogous to physical examinations, drug/alcohol testing requirements, and polygraph testing, all of which the Board has found to be mandatory subjects of bargaining." [23] In that same decision the Board states that while the company, Colgate-Palmolive, posits that "bargaining before a hidden camera is actually installed would defeat the very purpose of the camera" the "very existence of secret cameras...is a term and condition of employment, and is thus a legitimate concern for the employees' bargaining representative." [24] This ruling's underlying logic introduces a means for unions to fight the onslaught of digital surveillance by circumscribing a company's supposed right to secrecy in monitoring its employees. This could be particularly efficacious in combating the imposition of some of the most nebulous technologies, such as algorithms.

The Quantified Worker: Surveillance as Management

Putting the speculative matter of these pre-employment screenings and employee polls aside, there are many other means of "scientific management" that descend from some of the most hideous–though lawful at the time of their occurrence–labor practices seen in the United States, including the strategic monitoring of slaves to ensure that the most profit could be wrung from their bodies and the use of firms such as the Pinkertons to surveil and intimidate union workers. [25] Companies now have access to and utilize an assortment of technologies that track and analyze, amongst other things, workers' "microexpressions", proximity to each other, keystrokes, biometric data, and supposed productivity metrics. [26] Each of these inputs is mined, compiled, and run through proprietary algorithmic systems to produce assessments of performance, trustworthiness, or risk; none of which workers are permitted to interrogate or appeal.

These practices transform employees into data points, turning them into what law professor Ifeowa Ajunwa calls a "quantified worker." [27] Just as the early industrialists once used stopwatches to regiment human motion on the assembly line, the contemporary employer uses wearable sensors and automated monitoring to extend managerial power into every second of the workday. The result is not just intensified exploitation, but a qualitative transformation in the employment relationship. Workers are not merely observed but continuously modeled, predicted, and preemptively disciplined. Surveillance today is no longer a supplement to management; it is management.

An Inadequate Standard: The Law's Failure to Keep Pace

As the Board notes in Cannon Electric Company, "an employer cannot discriminate against union adherents without first determining who they are." [28] This axiom highlights surveillance's role in maintaining a power imbalance between workers and their employers. The Board's rulings on surveillance often center on its psychological effect on employees, taking the position that workers ought to be free from concerns that "members of management are peering over their shoulders, taking note of who is involved in union activities, and in what particular ways." [29] The Board also finds "employer conduct that creates an impression of surveillance to be a violation of Section 8(a)(1) of the Act." [30] Panoptic workplace conditions violate both of these provisions. While "[t]he test for whether an employer unlawfully creates an impression of surveillance is whether under the circumstances, the employee reasonably could conclude from the statement in question that his protected activities are being monitored", former General Counsel Abruzzo took the more aggressive and sensible position that "an employer has presumptively violated Section 8(a)(1) where the employer's surveillance and management practices, viewed as a whole, would tend to interfere with or prevent a reasonable employee from engaging in activity protected by the Act." [31] As a prominent legal scholar Charlotte Garden asserts, the current standard for what constitutes "unlawful surveillance" grants employers the ability "to set the baseline" evinced by cases such as The Broadway, 267 N.L.R.B. 385, 400 (1983) and Metal Industries Inc., 251 N.L.R.B. 1523, 1523 (1980) wherein the Board found that companies did not commit unfair labor practices by surveilling "concerted activity" because the methods in question were established policies before workers began partaking in the activity and were therefore not "out of the ordinary." [32]

As demonstrated here, utilizing standards for ascertaining whether employer surveillance is unlawful developed in an era where surveillance was more limited and labor-intensive and is wholly inadequate in addressing the nightmarish technological impositions of the 21st-century workplace. The extant legal framework was never designed to account for the reach, speed, or opacity of contemporary data capture. All labor issues are connected to larger economic and sociological patterns. In this context, grotesquely invasive privacy violations are widely accepted and presented as an inevitability of the digital sphere despite end-user squeamishness. Employers no longer need to peer over shoulders to monitor workers, they can leverage technology that does so continuously, invisibly, and without recourse. The hegemonic force exerted by technological giants and the companies who stand to benefit from their might primes large portions of the public for disempowerment in their roles as both producers and consumers. The normalization of grotesquely invasive privacy violations happens under the guise of natural extensions of consumer convenience or efficiency, reflecting broader ideological shifts that prioritize capital accumulation over personal autonomy. Functionally, this means workers are coerced into ceding an enormous amount of power to an abstruse and intangible web of systems. They are rendered knowable to their employers in excruciating detail, while the systems that evaluate and discipline them remain black-boxed and inaccessible. This asymmetry mirrors and intensifies existing power dynamics. It also forecloses one of the most basic preconditions for collective action: the ability to know what is happening, to whom, and why. Digitally surveilled workers will remain double victims of the data-driven economy unless the Board is dogged in its obligation "to adapt the Act to changing patterns of industrial life." [33]

Conclusion

The rescission of GC 23-02, along with more than two dozen memoranda, is more than a mere bureaucratic shift. The new General Counsel's actions amount to a strategic retreat from the Board's duty to evolve alongside the rapidly transforming workplace. This quietly executed deregulatory offensive has devastating implications. It is a probative measure, labor's portion of the "shock and awe" stratagem foundational to the second Trump term.

While the Board is ostensibly impartial, in practice, its slant is highly contingent upon the political comportment of its leadership. This is evinced by the oscillation between pro-labor and anti-labor stances that accompany shifts in presidential administrations. The Board's rulings, priorities, and enforcement decisions are shaped not by an unwavering commitment to the principles enshrined in the NLRA, but by the ideological proclivities of whoever is in power. As a result, the Board's effectiveness is brittle and subject to abrupt reversal. That such sweeping deregulation could occur in near silence, via internal memoranda and without legislative input, underscores how little democratic insulation workers truly have from the whims of political appointees. It is not just the tools of surveillance that are opaque and unaccountable but the mechanisms of protection themselves.

Endnotes

[1] Jennifer A. Abruzzo, "Electronic Monitoring and Algorithmic Management of Employees Interfering with the Exercise of Section 7 Rights," Memorandum GC 23-02 (National Labor Relations Board, October 31, 2022), 1.

[2] Abruzzo, "Electronic Monitoring and Algorithmic Management," 6.

[3] William B. Cowen, "Rescission of Certain General Counsel Memoranda," Memorandum GC 25-05 (National Labor Relations Board, February 14, 2025).

[4] Celine McNicholas et al., Unlawful: U.S. employers are charged with violating federal law in 41.5% of all union election campaigns, Economic Policy Institute (2019), 2 https://www.epi.org/publication/unlawful-employer-opposition-to-union-election-campaigns/.

[5] Charlotte Garden, Enforcement-Proofing Work Law, 44 Berkeley Journal of Employment and Labor Law (2022).

[6] McNicholas et al., *Unlawful*, 2.

[7] Nathan Newman, UnMarginalizing Workers: How Big Data Drives Lower Wages and How Reframing Labor Law Can Restore Information Equality in the Workplace, SSRN Electronic Journal (2016), 693.

[8] Newman, "UnMarginalizing Workers," 710.

[9] Newman, "UnMarginalizing Workers," 707.

[10] Richard A Bales & Katherine V.W. Stone, The Invisible Web at Work: Artificial Intelligence and Electronic Surveillance in the Workplace, 41 Berkeley Journal of Employment & Labor Law (2020), https://lawcat.berkeley.edu/record/1181483?ln=en., 22.

[11] Abruzzo, "Electronic Monitoring and Algorithmic Management," 4.

[12] Newman, "UnMarginalizing Workers," 710.

[13] Newman, "UnMarginalizing Workers," 739.

[14] Struksnes Construction Co., Inc., 165 NLRB 1062(1967)

[15] Allegheny Ludlum Corporation v. N.L.R.B, 301 F.3d 167 (3d Cir. 2002), 1359.

[16] Allegheny Ludlum Corp., 333 NLRB 734, 740 (2001), 737.

[17] Newman, "UnMarginalizing Workers," 739.

[18] *Midwest Regional Joint Board, Amalgamated Clothing Workers of America v. NLRB, 564 F.2d 434, 438 (D.C. Cir. 1977); see also Burns International Security Services, Inc., 225 N.L.R.B. 271, 274 (1976), enforcement denied, 567 F.2d 945 (10th Cir. 1977).*

[19] *Contractor Services, Inc., 324 N.L.R.B. 1254, 1255 (1997).*

[20] U.S. Bureau of Labor Statistics, "Union Members—2022," news release, January 19, 2023.

[21] Golden Stevedoring Co., Inc., 335 N.L.R.B. 410, 426 (2001).

[22] *Golden Stevedoring, 426.*

[23] Colgate-Palmolive Co., 323 N.L.R.B. 515, 515 (1997).

[24] *Colgate-Palmolive*, 516.

[25] Esperanza Fonseca, Worker Surveillance Is on the Rise, and Has Its Roots in Centuries of Racism, Truthout (2020), https://truthout.org/articles/worker-surveillance-is-on-the-rise-and-has-its-roots-in-centuries-of-racism/ (last visited Dec 17, 2023).

[26] Bales and Stone, "Invisible Web at Work," 12.

[27] Ifeoma Ajunwa, The Quantified Worker: Law and Technology in the Modern Workplace (Cambridge: Cambridge University Press, 2023), 1.

[28] Cannon Electric Co. and Charles H. Warren, 151 N.L.R.B. 1465, 1468 (1965).

[29 Flexsteel Industries, Inc., 311 N.L.R.B. 257, 257 (1993).

[30] Delmas Conley d/b/a Conley Trucking, 349 N.L.R.B. 308, 315 (2007).

[31] Abruzzo, "Electronic Monitoring and Algorithmic Management," 8.

[32] Charlotte Garden, "Labor Organizing in the Age of Surveillance," St. Louis University Law Journal 63 (2018): 62.

[33] NLRB v. J. Weingarten, Inc., 420 U.S. 251, 266 (1975).

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